Form No. **T-RD-APP-01**

Republic of the Philippines
TOURISM INFRASTRUCTURE AND ENTERPRISE ZONE AUTHORITY
Tourism Enterprise Zone Management Sector
MAKATI

APPLICATION FORM
(DESIGNATION OF TOURISM ENTERPRISE ZONE)

Instructions: This application together with the required supporting documents must be submitted in three (3) sets of hard copies and three (3) sets of soft copies to TEZ Regulation Department subject to the payment of application fee.	**FOR TIEZA USE ONLY**
	Application No.
	Date Filed
	Application Fee: Php 200,000
	O.R. Number

PROPONENT'S INFORMATION			
Name of the Proponent			
Address			
Telephone No.	Fax No.	E-mail address	Website

PROPONENT'S AUTHORIZED REPRESENTATIVE TO TIEZA			
Authorized Representative			
Company		Position	
Office Address			
Telephone No.	Fax No.	E-mail address	Website

PROJECT DETAILS			**ZONE CLASSIFICATION** (to be filled out by TIEZA)	**ZONE STATUS** (to be filled out by TIEZA)
Proposed Zone Name			Cultural and Heritage	
Zone Address			Health and Wellness	Greenfield _____
Area (in hectares)			Eco-tourism	
Capital Investment	Php	$	General Leisure	Brownfield _____
TIN			Mixed-use	

PROPONENT'S PARENT OR MANAGEMENT COMPANY (if any)	
Name	
Address	

SEC REGISTRATION/ARTICLES OF INCORPORATION		
Year Registered		Primary Purpose (per Articles of Incorporation/ Partnership)
SEC Registration No.		
Authorized Capitalization		
Subscribed Capital		
Paid-Up Capital		

EXISTING BUSINESS REGISTRATION (if any)		
Office	Registration No.	Date Registered
Securities and Exchange Commission		
Board of Investments		
Others, pls. specify		

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CHECKLIST OF DOCUMENTARY REQUIREMENTS			
UPON APPLICATION DOCUMENTS		PRO-FORMA	NUMBER OF COPIES
	1. Duly Accomplished TIEZA Application Form	✔	Three (3) ring-bind copies in A4 paper and three (3) electronic copies (CD)
	2. Project Brief	✔	
	3. SEC Certificate of Registration, Articles of Incorporation and By-Laws		
	4. Board Resolution authorizing the filing and designation and submission of name of a representative	✔	
	5. Anti-Graft Certificate pursuant to R.A. 3019	✔	
	6. Company Profile of the proponent containing basic data/information on its technical, financial, marketing and management capability to undertake the proposed project; track record of the company or consortium		
	7. List of directors, principal officers, and major stockholders, including respective bio-data		
	8. Proof of land ownership and/or Long-Term Lease Agreement(s) for a period of not less than 25 years on the entire area of the proposed TEZ		
	9. Vicinity map reflecting various land uses, important verifiable landmarks within the five (5) kilometers radius of the project site		
	10. HLURB Certification on land use or DAR Conversion Order		
	11. Letter of Authority from Head of National Agency or Local Chief Executive authorizing the filing and designation and submission of name of a representative *(In the case of National Government Agency or Local Government Unit applicants)*		
PRIOR TO DESIGNATION DOCUMENTS Upon receipt of the Notice to Proceed, kindly submit the documents listed below in the following formats specified:			
	1. Development Plan	✔	Three (3) ring-bind copies in A4 paper and three (3) electronic copies (CD)
	2. Copy of the Approved Comprehensive Land Use Plan of the LGU		One (1) ring-bind copy in A4 paper and one (1) electronic copy (CD)
	3. Resolution of the concerned LGU approving the development plan	✔	Three (3) ring-bind copies in A4 paper and three (3) electronic copies (CD)
	4. Verified survey returns and technical description of the land area of the proposed TEZ	✔	
	5. Environmental Compliance Certificate issued by the Department of Environment and Natural Resources (DENR)	✔	
	6. Financial statement for three (3) years for existing companies	✔	
	7. Filled-out Cost-Benefit Analysis (CBA) Form	✔	
	8. Masterlist of Capital Investment & Equipment to be imported	✔	
	9. Other requirements as may be prescribed by the TIEZA Board	✔	

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PROJECT BRIEF OUTLINE

I. RATIONALE

- State the need for and purpose of the Tourism Enterprise Zone (TEZ)
- Touristic value of the TEZ; justification that proposed TEZ has historical and cultural significance, environmental beauty or existing or potential integrated leisure facilities within its bounds or within reasonable distances from it

II. PROJECT LOCATION AND AREA

- Total area to be developed (in hectares)
- Access to Project Site / Location Map including Directions
- Vicinity map reflecting existing land use
- Map showing important verifiable landmarks within 5km-radius of project site including transportation and utilities infrastructure
- Tourism focal points in the vicinity and distance from project site
- Site development plan

III. PROJECT PLAN AND COMPONENTS

- Briefly describe project components (existing or to be built facilities/infrastructure and existing or proposed locators)

IV. SERVICES AND MANPOWER REQUIREMENT

- Construction Phase (Direct and Indirect)
- Operational Phase (Direct and Indirect)
  Kindly state the projected number of employees at the start of operation up to the next six (6) years. Indicate also which years correspond to Year 1, Year 2, Year 3 and the like (e.g. Year 1- 2013; Year 2-2014; and so on.)

V. PROJECT COST

- Estimated value of investment required (in USD)
- Sources of financing by the developer
- Estimated cost of the developer

Sources	Amount
Equity	
Loans	
Others	

- Possible sources of financing for the zone

Sources	Amount
Equity	
Loans	
Others	

VI. PROJECT DURATION AND SCHEDULE

- Construction and Development Timetable of the proposed and existing tourism enterprises

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APPLICANT'S NOTARIZED UNDERTAKING
(For New Enterprise only)

In applying for TIEZA registration, the Applicant herewith makes the following undertaking:

1. That Applicant will operate on a sound and efficient basis and contribute to the objectives of the TEZ and to the development of the national economy in general.

2. That Applicant is economically, technically, and financially sound.

3. That Applicant will engage in good faith in creating a market for its products/services abroad.

4. That Applicant will install an accounting system adequate to identify the investments, revenues, costs and profits or losses of the project covered by this application separately from the aggregate investments, revenues, costs and profits or losses of the other business activities of the applicant not registered under R.A. 9593, or establish separate entity for the project covered by this application if so required by the Authority. (Applicable only if applicant is engaged or proposes to engage in undertaking or activities in addition to the project covered by this application.)

5. That Applicant shall use domestic raw materials and supplies in preference to imported goods whenever these are available at comparable quality and price.

6. That Applicant shall submit periodic reports and other information that the Authority may require on its activities.

7. That Applicant has read Republic Act 9593 and its Implementing Rules and Regulations, and commits to abide by the provisions thereof and amendments thereto.

8. That Applicant shall start and operate the project covered by this application within such reasonable time as may be fixed by the Authority.

9. That, if the Applicant is a corporation, its board of directors has authorized the filing of this application in accordance with the terms thereof.

10. That, pursuant to the provisions of Sec. 3 and Sec. 14 of R.A. 3019 (Anti-Graft Act), the Applicant has not given or promised to give and will not give any gift to any officer or employee of the Tourism Infrastructure and Enterprise Zone Authority in connection with the filing and processing of this application.

11. That the Applicant's Board of Directors has authorized the release of the portion of its project study entitled "Brief Description of the Project" to the public whenever necessary.

12. That based on the records of the Applicant, no Board member or TIEZA official has an investment or any other financial interest, direct or indirect, in the applicant's enterprise.

13. That there exists no dummy relationship between the stockholders or Directors of the Applicant and any foreigner.

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Done in the City/Province of _____ this _____ day of _____, 20 _____

_____
Affiant

_____
Designation

Republic of the Philippines)
City/Province of) S.S.

Subscribed and sworn to before me this _____ day of _____, 20_____ in the City/Province of _____. Affiant exhibited to me his Residence Tax Certificate No. A. _____ issued at _____, on _____, 20____.

_____
Notary Public
Until December 31, 20 ____

Doc. No. _____
Page No. _____
Book No. _____
Series of 20 _____

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ANTI-GRAFT CERTIFICATE

I, _____, of legal age, President/General Manager of _____with postal address at _____, swearing under oath, hereby depose and state:

That pursuant to the provisions of Section 3 and 14 of R.A. 3019 (Anti-Graft Act), the applicant enterprise, _____ has not given or promised to give, and will not give any gift to any officer/employee of the TIEZA in connection with the filing and processing of this application, nor will it give such gift to any of said officers or employees after approval of its application

That based on the records of the applicant, no Board Member or Officer of the TIEZA has an investment or other financial interest, direct or indirect, in the applicant.

_____
Affiant

Subscribed and sworn to before me this _____ day of _____, 20_____ in the City/Province of _____. Affiant exhibited to me his Driver's License/Passport ID No. A. _____, issued at _____, on _____ 20 _____.

_____
Notary Public
Until December 31, 20 _____

Doc. No. _____
Page No. _____
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SECRETARY'S CERTIFICATE

I, _____, of legal age, Filipino, with business address at _____, swearing under oath, hereby depose and state:

That I am the duly elected Corporate Secretary of _____ _____ (the "Applicant-Company"), a domestic corporation duly organized and existing under the laws of the Republic of the Philippines with principal office at _____; and

That at a duly convened meeting of the Board of Directors of the Applicant Company held on _____, the following resolutions were unanimously approved:

> *"Whereas the Company wishes to apply for registration of its _____ Project with the Tourism Infrastructure and Enterprise Zone Authority ("TIEZA");*
>
> *"Now, therefore, be it resolved, as it is hereby resolved, that, the Board authorize the Company to proceed with its application for the registration of its _____ Project with TIEZA; and*
>
> *"Resolved, further, as it is hereby resolved, that the Board authorizes the Company's _____ to be designated representative of the Company in all dealings and transactions with TIEZA in relation to the registration of the Company's _____ Project with the TIEZA."*

That the foregoing is a true and correct copy of the resolution appearing in the minutes of the Applicant-Company and is, as of this date, in full force and effect.

In witness whereof, I have hereunto set my hand at _____ this _____ day of _____ 20 _____.

_____
Corporate Secretary

SUBSCRIBED AND SWORN to before me this _____ day of _____ 20 ___. Affiant exhibited to me his Driver's License/Passport ID No. _____ issued at _____ on _____, 20 ____.

Notary Public
Until December 31, 20 ____

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DEVELOPMENT PLAN COMPONENTS

The Comprehensive Development Plan of a TEZ must take into account the priorities and policies of the National Government and fall within the parameters of the programs established by the National Tourism Development Plan as well as by the Department of Tourism or Provincial/Municipal Development Plans, and it must contain at least:

I. Executive summary of the proposed TEZ

1.1. General Description;
1.2. Goals and Objectives;
1.3. Estimated value of investment for the development of the proposed TEZ (excluding the price of the property);
1.4. Estimated job generation;
1.5. Sources of Financing (equity, loans and others);
1.6. Size of the Area being applied as TEZ (the size of the area should be consistent with the Proof of Ownership that the applicant will provide as well as the coverage of the Environmental Compliance Certificate or ECC).

II. Components

2.1. Identification of the company or corporation intending to acquire TEZ status:

- If the corporation is already existing, what is the main thrust of the corporation?;
- If it is a new corporation, in the Articles of Incorporation, make sure that in the main thrust of the corporation, development and management of a TEZ is included.

2.2. Detailed description of the proposed TEZ, including at least:

2.2.1. Total area of the TEZ:
- 2.2.1.1. Indicate the size of the area (in sqm.) allocated for tourism enterprises/ locators
- 2.2.1.2. Indicate the size of the area (in sqm.) allocated for internal circulation roads and open spaces/ green areas/ parks
- 2.2.1.3. Indicate the size of the area (in sqm.) allocated for control authorities: for administrative offices, production, and service facilities/ utilities (for the operation of the TEZ)
- 2.2.1.4. Indicate the size of the area (in sqm) that will not bear the TEZ status or register as a Tourism Enterprise (locator). These are the land set aside for residential, institutional, and other non-tourism related land uses

2.2.2. Intended TEZ classification based on the potential or already existing tourism enterprises inside the TEZ;
2.2.3. Urban and architectural development of the project. Indicate the architectural theme or urban form of the proposed TEZ;
2.2.4. Optimum location of the project (Region, Province, Municipality or City, the site itself);
2.2.5. Terrain Characteristics;
2.2.6. Transport Analysis:
- 2.2.6.1. Modes of transport going to the site

2.2.6.2. Access roads leading to the site
2.2.6.3. Internal transportation system (e.g. electric golf carts)

2.2.7. Estimated total amount of investment and development schedule during each stage/ phase of the project:

Timetable of Development

Unless a different period is required and duly approved by the Board, the development of the whole TEZ must be completed within a maximum period of five (5) years:

Development Phase and Amount of Investment per Phase			
Schedule of Development	**Percent Completion of the Development**	**Estimated Amount of Investment per Phase**	**Activities Involved (e.g. construction of the hotel, fencing, earthworks)**
Phase I	**30%**		
Phase II	**30%**		
Phase III	**20%**		
Phase IV	**10%**		
Phase V	**10%**		

2.3. Conceptual Technical, Design, Engineering, and Environmental Plans

In order to determine whether the project is technically viable, the study must include at least:

2.3.1. Site Development Plan with perspectives per section showing the layout of buildings/ facilities/ land uses in the proposed TEZ;

2.3.2. Description of the proposed and existing tourism enterprises (locators) inside the tourism zone;

2.3.3. Raw materials to be used in the development of the site and construction of buildings, utilities and facilities:
2.3.3.1. Sources of raw materials
2.3.3.2. Specific use of the raw materials

2.3.4. Disaster Risk Reduction and Climate Change Mitigation mechanisms applied in the development of the zone (commonly can be seen in the EIS/ IEER, the documentary requirements in the application for an ECC). Please indicate if Disaster Risk Reduction and Climate Change Mitigation mechanisms and techniques are considered in planning of the zone. These mechanisms and techniques may be applied on the following components of the site development of the proposed TEZ:
2.3.4.1. Setbacks and Easements (beachfront, structures, roads, etc.)
2.3.4.2. Landscape design
2.3.4.3. Architectural design of the buildings
2.3.4.4. Measures to address heavy rainfall, strong winds, earthquakes, flooding, increased humidity, rising temperature, coastal storm surges and inundation
2.3.4.5. Adoption of green technology and energy-efficient measures on utilities, fixtures and fittings

2.3.5. Site management and maintenance mechanism. From construction to operation periods of development:
2.3.5.1. Cleaning and Maintenance
2.3.5.2. Construction
2.3.5.3. Security Personnel

2.3.5.4. Frontline Services and Administrative jobs

2.3.6. Provision for utilities and facilities:

2.3.6.1. Projected water consumption (in cubic meter) and source of water of the whole zone including its existing and proposed locators.

2.3.6.2. Projected amount of sewage generated (in cubic meter) and way of disposal/ sewerage disposal system

2.3.6.3. Wastewater treatment/ materials recovery facility

2.3.6.4. Water drainage system/ storm water drainage

2.3.6.5. Security measures for public areas inside the zone: e.g. CCTV cameras

2.3.6.6. Projected electric consumption of the whole zone and its existing and proposed locators. Indicate the electricity provider

2.3.7. Architectural Drawings and Perspectives of the existing and Conceptual Architectural Drawings of the proposed locators

2.3.8. Design plans for structures incorporating therein measures that should ensure the sustainable development of the area and the surrounding environment, to include the following (civil and architectural plans that preferably incorporates Philippine design elements and cultural heritage; structural plans; electrical, mechanical, sanitation and design computations; cost estimates and specifications; financial schedules and construction timetable).

2.4. Economic Feasibility Study

In order to determine the project's economic feasibility, the study must include at least:

2.4.1. Projection of regional and national economic indicators relevant to the project;

2.4.2. Estimated demand;

2.4.3. Production and sales forecast both in the domestic and foreign markets;

2.4.4. Social aspects of the project.

2.5. Financial Feasibility Study

In order to determine if the project is financially viable, the study must indicate:

2.5.1. Economic assumptions for the forecasted period: inflation, devaluation, capital cost rates and interest rate foreseen for the cost of the debt or the corresponding liability;

2.5.2. Financial statement forecast: General balance sheet, cash flow, results statement, description of calculations and trends;

2.5.3. Evaluation and justification of net present value, internal rate of return, and economic profitability indicators;

2.5.4. Information on the project's financial structure, detailing the resources to be financed with capital or debt, a description of the financing conditions and the investment plan;

2.5.5. Estimated sales amount, detailed by national and foreign market.

2.6. Market Study

In order to identify strategies and opportunities for the project, the study must include:

2.6.1. Analysis of the potential market for the services and/or products to be offered or marketed in the TEZ and that of the possible users that will settle in the zone;

2.6.2. List of the various national and international markets where the products and services are to be sold, as well as each such market's expected share;

2.6.3. Study of the marketing strategy for the TEZ;
2.6.4. Sales and/or income forecast;
2.6.5. Detailed list of the national and international competitors that the TEZ and its main users of goods and services will have;
2.6.6. Medium and long-term studies on the market trends, and corresponding development strategies for the TEZ.

2.7. Socio-Cultural Discussion

The proposed project must be such that it respects the local culture, generate employment and boosts the people's sense of cultural and national pride

2.7.1 Services and Manpower Requirement: number of jobs that the investor plans to generate during each stage of the project:

	DIRECT	INDIRECT/ OUTSOURCED
Construction Phase		
Operations Phase Year:		
1		
2		
3		
4		
5		
6		

2.7.2. Initiatives to recognize and respect local culture and Indigenous People's rights;
2.7.3. Identification of future consequences of the tourism development plan related to individuals, community organizations, and social macro-systems;
2.7.4. Suggested mechanisms to mitigate negative socio-cultural impacts;
2.7.5. Corporate Social Responsibility efforts.